

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
ILMI VUKTILAJ,

Index No.

Date Purchased:

Plaintiff,

-against-

**Plaintiff designates
Bronx County as Place
of Trial**THE CITY OF NEW YORK, POLICE OFFICER
STEVEN R. CLARKE (SHIELD NO.: 4236)
MEMBER OF THE NEW YORK CITY POLICE
DEPARTMENT, AND POLICE OFFICER
BRYAN D. THOOHO (SHIELD NO.: 5250)
MEMBER OF THE NEW YORK CITY POLICE
DEPARTMENT,**The basis of venue:****Site of Incident
S/B I-895
Bronx, New York**Defendants.
-----X

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this Summons, exclusive of the date of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint with interest and cost from the date of occurrence.

Dated: New York, New York
July 26, 2023**RASKIN & KREMINS, L.L.P.****Michael F. Kremins**By: MICHAEL F. KREMINS, ESQ.
Attorneys for Plaintiff
ILMI VUKTILAJ
160 Broadway – 4th Floor
New York, New York 10038
(212) 587-3434

TO: THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER STEVEN R. CLARKE
SHIELD NO. 4236
MANHATTAN SPECIAL VICTIMS SQUAD
137 Centre Street, Suite 4
New York, New York 10013

POLICE OFFICER BRYAN D. THOOHO
SHIELD NO. 5250
MANHATTAN SPECIAL VICTIMS SQUAD
137 Centre Street, Suite 4
New York, New York 10013

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
ILMI VUKTILAJ,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINTTHE CITY OF NEW YORK, POLICE OFFICER STEVEN
R. CLARKE (SHIELD NO.: 4236) MEMBER OF THE
NEW YORK CITY POLICE DEPARTMENT, AND
POLICE OFFICER BRYAN D. THOOHO
(SHIELD NO.: 5250) MEMBER OF THE NEW YORK
CITY POLICE DEPARTMENT,Defendants.
-----X

Plaintiff, ILMI VUKTILAJ, by his attorneys, RASKIN & KREMINS, L.L.P. complaining
of Defendants, upon information and belief, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, Plaintiff, ILMI VUKTILAJ
("VUKTILAJ"), was and is a resident of the County of Bronx, City and State of New York.
2. That at all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK
("CITY"), was and still is a municipal corporation duly organized and existing under and by
virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, Defendant, POLICE OFFICER STEVEN
R. CLARKE (SHIELD NO.: 4236) MEMBER OF THE NEW YORK CITY POLICE
DEPARTMENT ("P.O. CLARKE"), was employed by Defendant CITY.
4. That at all times hereinafter mentioned, Defendant, POLICE OFFICER BRYAN
D. THOOHO (SHIELD NO.: 5250) MEMBER OF THE NEW YORK CITY POLICE
DEPARTMENT ("P.O. THOOHO"), was employed by Defendant CITY.

5. That on the 14th day of November, 2022, a Notice of Claim was duly served upon the CITY pursuant to section 50-h of the General Municipal Law.

6. That on March 8, 2023, VUKTILAJ appeared for a 50-h hearing pursuant to New York General Municipal Law.

7. That more than thirty (30) days have elapsed since service of the aforesaid Notice of Claim and the claim has not been adjusted or paid and this action is commenced within one (1) year and ninety (90) days after the accrual of VUKTILAJ's cause of action.

8. That VUKTILAJ has complied with all conditions, precedent to the commencement of this action.

9. That CITY has neglected and/or refused to make adjustment or payment pursuant to Plaintiff's claim and less than one year and ninety (90) days have elapsed since the accrual of the cause of action herein set forth.

10. That at all times hereinafter mentioned, P.O. CLARKE, was acting within the scope of his employment with CITY, as a member of The New York City Police Department.

11. That at all times hereinafter mentioned, P.O. THOOHO, was acting within the scope of his employment with CITY, as a member of The New York City Police Department.

12. That on or about August 25, 2022, at approximately 12:55 p.m., P.O. CLARKE was operating an unmarked police cruiser.

13. That on or about August 25, 2022, at approximately 12:55 p.m., P.O. CLARKE was operating an unmarked police cruiser without sirens, horn, turret light, 4-way flasher, high-level warning lights or headlights.

14. That on or about August 25, 2022, at approximately 12:55 p.m., P.O. CLARKE was operating a 2019 Toyota bearing the New York State license plate no. JDB5913 (hereinafter "TOYOTA").

15. That on or about August 25, 2022, at approximately 12:55 p.m., P.O. CLARKE was operating the aforementioned TOYOTA in the right lane of I-895 Southbound Sheridan Boulevard Ramp at or near its intersection with the Exit to Westchester Avenue, in the City and State of New York, County of Bronx.

16. That on or about August 25, 2022, at approximately 12:55 p.m., P.O. CLARKE was operating the aforementioned TOYOTA (without sirens, horn, turret light, 4-way flasher, high-level warning lights or headlights), in the right lane of I-895 Southbound Sheridan Boulevard Ramp at or near its intersection with the Exit to Westchester Avenue, in the City and State of New York, County of Bronx.

17. That on or about August 25, 2022, at approximately 12:55 p.m., P.O. THOOHO was a passenger in the unmarked police cruiser, a 2019 Toyota bearing the New York State license plate no. JDB5913.

18. That on or about August 25, 2022, at approximately 12:55 p.m., P.O. THOOHO was operating the TOYTOTA without sirens, horn, turret light, 4-way flasher, high-level warning lights, or headlights, a 2019 Toyota bearing the New York State license plate no. JDB5913.

19. That on or about August 25, 2022, at approximately 12:55 p.m., P.O. THOOHO was a passenger in a 2019 Toyota bearing the New York State license plate no. JDB5913.

20. That on or about August 25, 2022, at approximately 12:55 p.m., P.O. THOOHO was a passenger of the aforementioned TOYOTA in the right lane of I-895 Southbound Sheridan

Boulevard Ramp at or near its intersection with the Exit to Westchester Avenue, in the City and State of New York, County of Bronx.

21. That on or about August 25, 2022, at approximately 12:55 p.m., P.O. THOOHO was a passenger of the aforementioned, TOYOTA (without sirens, horn, turret light, 4-way flasher, high-level warning lights or headlights), in the right lane of I-895 Southbound Sheridan Boulevard Ramp at or near its intersection with the Exit to Westchester Avenue, in the City and State of New York, County of Bronx.

22. That on or about August 25, 2022, at approximately 12:55 p.m., Plaintiff, was lawfully operating his vehicle, a 2006 Dodge, bearing Michigan State plate no. 2NBV44 (hereinafter "DODGE"), on the left lane of I-895 Southbound Sheridan Boulevard Ramp at or near its intersection with the Exit to Westchester Avenue, in the County of Bronx, State of New York.

23. That on or about August 25, 2022, at approximately 12:55 p.m., Plaintiff, was lawfully operating the aforementioned DODGE when it was struck on the right side (sideswipe) by the TOYOTA operated by P.O. CLARKE and/or P.O. THOOHO, when the TOYOTA was merging into the left lane where Plaintiff, was operating the aforementioned DODGE.

24. That as a result of this occurrence, Plaintiff, sustained severe and permanent personal injuries as a result of the wrongful, willful, reckless, careless and negligent acts of defendants herein, their agents, servants and/or employees.

25. That CITY is vicariously liable for the actions and conduct of its employees, including P.O. CLARKE and P.O. THOOHO.

26. That the foregoing occurred solely and wholly as a result of the negligence of Defendants herein, their agents, servants and/or employees, and without any negligence on the part of Plaintiff contributing thereto.

27. That CITY, their agents, servants and/or employees were negligent and careless in hiring, supervising, controlling, maintaining, training, educating, interviewing and investigating their agents, servants and/or employees; in negligently and carelessly failing to direct their agents, servants and/or employees not to use improper and/or excessive force; in negligently and carelessly, willfully and wrongfully causing, permitting and allowing Plaintiff to be subjected to assault and battery, traumatized, pushed, shoved, tackled, falsely arrested and wrongfully imprisoned causing injury, emotional and psychological damage; in negligently and carelessly causing, permitting and allowing employees and/or personnel who were negligently trained to use improper and/or excessive force; in negligently and carelessly using improper and/or excessive force, in negligently and carelessly failing to adequately train police officers and/or other personnel for the public's safety, including Plaintiff; in denying prompt and necessary medical attention; and in being otherwise careless and negligent.

28. That by reason of the foregoing, Plaintiff became sick, sore, lame and disabled; Plaintiff has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

29. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "28" of the complaint herein with the same force and effect as if set forth herein at length.

30. That, P.O. CLARKE, acting under the color of authority and without provocation, viciously and maliciously attacked Plaintiff, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

31. That, P.O. THOOHO, acting under the color of authority and without provocation, viciously and maliciously attacked Plaintiff, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

32. That, P.O. CLARKE, acting under the color of authority and without provocation, viciously and maliciously assaulted Plaintiff, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

33. That, P.O. THOOHO, acting under the color of authority and without provocation, viciously and maliciously assaulted Plaintiff, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

34. That CITY is vicariously liable for the actions and conduct of its employees, including P.O. CLARKE and P.O. THOOHO.

35. That by reason of the foregoing, Plaintiff became sick, sore, lame and disabled; Plaintiff has sustained permanent personal, emotional and psychological injuries that will

continue for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

36. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "35" of the complaint herein with the same force and effect as if set forth herein at length.

37. That, P.O. CLARKE, acting under the color of authority and without provocation, viciously and maliciously battered Plaintiff, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

38. That, P.O. THOOHO, acting under the color of authority and without provocation, viciously and maliciously battered Plaintiff, causing him to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.

39. That CITY is vicariously liable for the actions and conduct of its employees, including P.O. CLARKE and P.O. THOOHO.

40. That by reason of the foregoing, Plaintiff became sick, sore, lame and disabled; Plaintiff has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff was caused to suffer

great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

41. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "40" of the complaint herein with the same force and effect as if set forth herein at length.

42. That, P.O. CLARKE, acting under the color of authority and without provocation, viciously and maliciously falsely arrested Plaintiff, wrongfully depriving Plaintiff of his liberty.

43. That, P.O. THOOHO, acting under the color of authority and without provocation, viciously and maliciously falsely arrested and imprisoned Plaintiff, wrongfully depriving Plaintiff of his liberty.

44. That, CITY, by and through its employees, including P.O. CLARKE and P.O. THOOHO, without provocation, viciously and maliciously falsely arrested Plaintiff, wrongfully depriving Plaintiff of his liberty.

45. That P.O. CLARKE, without probable cause, falsely arrested Plaintiff.

46. That P.O. THOOHO, without probable cause, falsely arrested Plaintiff.

47. That, CITY, by and through its employees, including P.O. CLARKE and P.O. THOOHO, without probable cause, falsely arrested Plaintiff.

48. That CITY is vicariously liable for the actions and conduct of its employees, including P.O. CLARKE and P.O. THOOHO.

49. That Plaintiff was conscious of his confinement, did not consent to his confinement, and the confinement was not otherwise privileged or with just or probable cause.

50. That by reason of the foregoing, Plaintiff became sick, sore, lame and disabled; Plaintiff has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "50" of the complaint herein with the same force and effect as if set forth herein at length.

52. That, P.O. CLARKE, acting under the color of authority and without provocation, viciously and maliciously falsely imprisoned Plaintiff wrongfully depriving Plaintiff of his liberty.

53. That, P.O. THOOHO, acting under the color of authority and without provocation, viciously and maliciously falsely imprisoned Plaintiff wrongfully depriving Plaintiff of his liberty.

54. That CITY is vicariously liable for the actions and conduct of its employees, including P.O. CLARKE and P.O. THOOHO.

55. That Plaintiff was conscious of his confinement, did not consent to his confinement, and the confinement was not otherwise privileged or with just or probable cause.

56. That by reason of the foregoing, Plaintiff became sick, sore, lame and disabled; Plaintiff has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; Plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that Plaintiff was caused to suffer great

psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SIXTH OF ACTION

57. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "56" of the complaint herein with the same force and effect as if set forth herein at length.

58. That, P.O. CLARKE, acting under the color of authority and without provocation, unlawfully detained Plaintiff, wrongfully depriving Plaintiff of his liberty.

59. That, P.O. THOOHO, acting under the color of authority and without provocation, unlawfully detained Plaintiff, wrongfully depriving Plaintiff of his liberty.

60. That CITY is vicariously liable for the actions and conduct of its employees, including P.O. CLARKE and P.O. THOOHO.

61. That VUKTILAJ was conscious of his detainment, did not consent to being detained and the detainment was not otherwise privileged or with just or probable cause.

62. That by reason of the foregoing, VUKTILAJ became sick, sore, lame and disabled; VUKTILAJ has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; VUKTILAJ will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that VUKTILAJ was caused to suffer great psychological injury, emotional injury and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

63. VUKTILAJ repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "62" of the complaint herein with the same force and effect as if set forth herein at length.

64. That, CITY, acting under the color of authority and without provocation, viciously and maliciously falsely prosecuted Plaintiff, wrongfully depriving Plaintiff of his liberty and due process of law.

65. That, CITY, acting under the color of authority and without provocation, viciously and maliciously falsely compelled the plaintiff to appear in public and in court, wrongfully humiliating the plaintiff herein and depriving him of his liberty and due process of law.

66. That by reason of the foregoing, VUKTILAJ became sick, sore, lame and disabled; VUKTILAJ has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; VUKTILAJ will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that VUKTILAJ was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION

67. VUKTILAJ repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "66" of the complaint herein with the same force and effect as if set forth herein at length.

68. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of CITY violated plaintiff's property and

liberty interests guaranteed to the plaintiff as a citizen of the United States under the Fourteenth Amendment to the United States Constitution and are therefore liable pursuant to 42 U.S.C. §1983.

69. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of CITY violated plaintiff's property and liberty interests guaranteed to the plaintiff as a resident of the State of New York under Article 1, Section 6 of the Constitution of the State of New York.

70. That by reason of the foregoing, VUKTILAJ became sick, sore, lame and disabled; VUKTILAJ has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; VUKTILAJ will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that VUKTILAJ was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A NINTH CAUSE OF ACTION

71. VUKTILAJ repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "70" of the complaint herein with the same force and effect as if set forth herein at length.

72. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of CITY violated plaintiff's right to equal protection under the law guaranteed to the plaintiff as a citizen of the United States under the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. §1983.

73. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of CITY violated plaintiff's right to equal protection under the law guaranteed to the plaintiff as a resident of the State of New York under Article 1, Section 6 of the Constitution of the State of New York.

74. That by reason of the foregoing, VUKTILAJ became sick, sore, lame and disabled; VUKTILAJ has sustained permanent personal, emotional and psychological injuries that will continue for some time to come; VUKTILAJ will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that VUKTILAJ was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A TENTH CAUSE OF ACTION

75. VUKTILAJ repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "74" of the complaint herein with the same force and effect as if set forth herein at length.

76. That by reason of the foregoing acts and/or omissions of Defendants in violation of the Fourteenth Amendment to the United States Constitution, VUKTILAJ has been forced to bring this lawsuit to enforce 42 U.S.C. §1983 and as a result thereof has suffered significant economic loss in the form of attorneys' fees.

77. That pursuant to 42 U.S.C. §1983, VUKTILAJ is entitled to reasonable attorneys' fees as part of costs.

AS AND FOR AN ELEVENTH CAUSE OF ACTION

78. VUKTILAJ repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "77" of the complaint herein with the same force and effect as if set forth herein at length.

79. That at all times hereinafter mentioned, Defendants, without cause or justification, did intentionally inflict emotional distress upon VUKTILAJ causing him to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

80. That at all times hereinafter mentioned, Defendants, without cause or justification, did negligently inflict emotional distress upon VUKTILAJ causing him to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.

81. That CITY is vicariously liable for the actions and conduct of its employees, including P.O. CLARKE and P.O. THOOHO.

82. That by reason of the foregoing, VUKTILAJ, became sick, sore, lame and disabled; VUKTILAJ, , has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; VUKTILAJ will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that VUKTILAJ was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A TWELFTH CAUSE OF ACTION
AGAINST DEFENDANT P.O. CLARKE

83. VUKTILAJ repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "82" of the complaint herein with the same force and effect as if set forth herein at length.

84. That on or about August 25, 2022, at approximately 12:55 p.m., at the above-stated location, at or near the left lane of I-895 Southbound Sheridan Boulevard Ramp at or near its intersection with the Exit to Westchester Avenue, in the County of Bronx, City and State of New York, , P.O. CLARKE, acting under the color of law, and without probable cause or provocation, viciously and maliciously assaulted, forcibly pushed and dragged VUKTILAJ into the TOYOTA and used other excessive force in the course of an arrest when P.O. CLARKE falsely detained, searched, arrested, imprisoned, and confined VUKTILAJ for over twenty minutes in the abovementioned TOYOTA, in the sweltering heat, with no air conditioning, all of which deprived VUKTILAJ of his liberty.

85. That VUKTILAJ was conscious of his confinement; VUKTILAJ did not consent to his confinement and use of excessive force; and the arrest, imprisonment, confinement, and use of excessive force were not otherwise privileged or with just or probable cause.

86. That the aforesaid acts of , P.O. CLARKE, under color of law, as an individual, violated VUKTILAJ's right to due process, violated VUKTILAJ's property and/or liberty interests, and/or violated VUKTILAJ's right to equal protection under the law, all of which are guaranteed to VUKTILAJ as a citizen of the United States under the Fourth and Fourteenth Amendments to the United States Constitution and is therefore liable to VUKTILAJ pursuant to 42 U.S.C. §1983.

87. That, P.O. CLARKE, under color of law, as an individual, violated 42 U.S.C. §1983.

88. That the aforesaid actions of, P.O. CLARKE, as an individual constituted an unreasonable use of excessive force, unreasonable seizure and confinement of Plaintiff without probable cause and violated VUKTILAJ's rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

89. That by reason of the foregoing, VUKTILAJ became sick, sore, lame and disabled; VUKTILAJ has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; VUKTILAJ will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that VUKTILAJ was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
AGAINST DEFENDANT P.O. CLARKE

90. VUKTILAJ repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "89" of the complaint herein with the same force and effect as if set forth herein at length.

91. That on or about August 25, 2022, at approximately 12:55 p.m., at the above-stated location, at or near the left lane of I-895 Southbound Sheridan Boulevard Ramp at or near its intersection with the Exit to Westchester Avenue, in the County of Bronx, City and State of New York, , P.O. CLARKE, acting under the color of law, and without probable cause or provocation, viciously and maliciously falsely detained, searched, arrested, imprisoned, and confined VUKTILAJ, ; that thereafter, , P.O. CLARKE did cause VUKTILAJ to be transported to the back of the abovementioned TOYOTA, where he continued to wrongfully confine, and imprison VUKTILAJ, all of which deprived VUKTILAJ of his liberty.

92. That VUKTILAJ was conscious of his confinement; VUKTILAJ did not consent to his confinement; and the arrest, imprisonment, and confinement were not otherwise privileged or with just or probable cause.

93. That the aforesaid acts of , P.O. CLARKE, under color of law, as an individual, violated Plaintiff's right to due process, violated Plaintiff's property and/or liberty interests, and/or violated VUKTILAJ's right to equal protection under the law, all of which are guaranteed to VUKTILAJ as a citizen of the United States under the Fourth and Fourteenth Amendments to the United States Constitution and is therefore liable to VUKTILAJ pursuant to 42 U.S.C. §1983.

94. That, P.O. CLARKE, under color of law, as an individual, violated 42 U.S.C. §1983.

95. That the aforesaid actions of, P.O. CLARKE, as an individual constituted an unreasonable seizure and confinement of VUKTILAJ without probable cause and violated Plaintiff's rights and privileges guaranteed under the Fourth and Fourteenth Amendments to the United States Constitution pursuant to 42 U.S.C. §1983.

96. That by reason of the foregoing, VUKTILAJ became sick, sore, lame and disabled; VUKTILAJ has sustained permanent personal, emotional and psychological injuries and will continue to be so for some time to come; VUKTILAJ will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that VUKTILAJ was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
AGAINST DEFENDANT P.O. CLARKE

97. VUKTILAJ repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "96" of the complaint herein with the same force and effect as if set forth herein at length.

98. That by reason of the foregoing acts and/or omissions of P.O. CLARKE in violation of the Fourth Amendment to the United States Constitution, VUKTILAJ has been forced to bring

this lawsuit to enforce 42 U.S.C. §1983 and as a result thereof has suffered significant economic loss in the form of attorneys' fees.

99. That pursuant to 42 U.S.C. §1983, VUKTILAJ is entitled to reasonable attorneys' fees as part of costs.

WHEREFORE, VUKTILAJ, demands judgment against Defendants, CITY, P.O. CLARKE and P.O. THOOHO in an amount which exceeds the jurisdictional limits of all lower courts, together with the costs, attorneys' fees, interest and disbursements of this action, and for such other and further relief as to this Court may deem just, proper and equitable.

Dated: New York, New York
July 26, 2023

Yours, etc.,

RASKIN & KREMINS, L.L.P.

Michael F. Kremins

By: MICHAEL F. KREMINS, ESQ.

Attorneys for Plaintiff

ILMI VUKTILAJ

160 Broadway - 4th Floor

New York, New York 10038

(212) 587-3434

ATTORNEY'S VERIFICATION

MICHAEL F. KREMINS, ESQ., an attorney duly admitted to practice before all the Courts of the State of New York, hereby affirms the truth of the following under the penalties of perjury:

That I am a member of the law firm RASKIN & KREMINS, LLP, attorneys for Plaintiff herein.

That I have read the annexed COMPLAINT and know the contents thereof and that the same is true to my own knowledge except as to those matters therein alleged to be made upon information and belief, and as to those matters, I believe them to be true.

That the reason this verification is made by your affirmant instead of Plaintiff is because Plaintiff does not reside within the County of New York, which is the County in which Raskin & Kremins, LLP maintains its office.

That the grounds for my belief as to all matters alleged to be on information and belief, are statements of said Plaintiff, papers and records in Plaintiff's possession, and a general investigation of the facts of this case.

Dated: New York, New York
July 26, 2023

Michael F. Kremins
MICHAEL F. KREMINS, ESQ.

Index Number:

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF BRONX

ILMI VUKTILAJ,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER STEVEN R.
CLARKE (SHIELD NO.:4236) MEMBER OF THE NEW YORK
CITY POLICE DEPARTMENT, AND POLICE OFFICER BRYAN
D. THOOHO (SHIELD NO.:5250) MEMBER OF THE NEW YORK
CITY POLICE DEPARTMENT

Defendants.

SUMMONS AND VERIFIED COMPLAINT

RASKIN & KREMINS, L.L.P

Attorneys for Plaintiff

ILMI VUKTILAJ

160 Broadway - 4th Floor

New York, New York 10038

(212) 587-3434

To: Attorney(s) for Defendant(s)

PLEASE TAKE NOTICE

**NOTICE OF
ENTRY**

☐ that the within is a (certified) true copy of an order entered in the office of the clerk
within named Court on , 2000.

**NOTICE OF
SETTLEMENT**

☐ that an Order of which the within is a true copy will be presented to the Hon.
the judges of within named Court, at , on

Dated: New York, New York
September 27, 2021

Yours, etc.,

RASKIN & KREMINS, L.L.P.

Attorneys for Plaintiff

YVETTE RICE

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